



Solicitors (Scotland) Act 1965

1965 CHAPTER 29

An Act to amend the law relating to solicitors in Scotland, and for purposes connected therewith.

[5th August 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. For sub-paragraphs (1) and (2) of paragraph 3 of Schedule 5 to the Act of 1949 (which paragraph provides for the suspension from practice of a solicitor who has become bankrupt) there shall be substituted the following sub-paragraphs:—

Amendment of
Schedule 5 to
Act of 1949.

“(1) Upon the estate of a solicitor being sequestrated or upon a solicitor granting a trust deed for behoof of his creditors or upon a judicial factor being appointed on the estate of a solicitor under section 15 of the Act of 1958, any practising certificate then held by the solicitor shall cease to have effect and, subject to the provisions of this paragraph, he shall be suspended from practice as a solicitor until he has obtained his discharge or, where a judicial factor has been appointed as aforesaid, until the judicial factor has obtained his discharge.

(2) It shall be the duty of a solicitor, upon his estate being sequestrated or upon his granting a trust deed for behoof of his creditors or upon a judicial factor being appointed on his estate under the said section 15, to intimate the same forthwith in writing to the registrar, and it shall also be the duty of the trustee on the sequestrated estate or acting under the trust deed, or of the judicial factor appointed on the estate, immediately on his appointment, to intimate his appointment in writing to the registrar.”

Amendment of
Section 17 of
Act of 1958.

2. For paragraph (c) of section 17(1) of the Act of 1958 (which section contains provisions as to the keeping of the roll of solicitors) there shall be substituted the following paragraph:—

“(c) if a reply indicating that he does not wish that his name shall continue to be included in the roll is returned by any solicitor to whom a letter has been so sent, or if no reply is returned within the period mentioned in paragraph (b) of this subsection by any such solicitor, to remove the name of that solicitor from the roll”.

On death of
solicitor
practising on
his own
account
Society to deal
with banking
accounts of
practice.

3.—(1) On the death of a solicitor who immediately before his death was practising as a solicitor in his own name or as a sole solicitor in a firm name the right to operate on or otherwise deal with any client account in the name of the solicitor or his firm shall, notwithstanding anything in the Act of 1949 or otherwise to the contrary, vest in the Society to the exclusion of any personal representatives of such solicitor and shall be exercisable as from the death of the solicitor.

(2) In this section the expression “client account” means a current or deposit or savings account, or a deposit receipt, at a bank in the title of which the word “client”, “trustee”, “Trust” or other fiduciary term appears, and includes an account or a deposit receipt for a client whose name is specified in the title of the account or deposit receipt.

Interest on
clients' money.

4.—(1) Rules made under section 20 of the Act of 1949 shall make provision for requiring a solicitor, in such cases as may be prescribed by the rules, either—

(a) to keep in a separate deposit or savings account at a bank, or on a separate deposit receipt at a bank, for the benefit of the client money received for or on account of a client; or

(b) to make good to the client out of the solicitor's own money a sum equivalent to the interest which would have accrued if the money so received had been kept as mentioned in paragraph (a) of this subsection.

(2) The cases in which a solicitor may be required to act in accordance with rules made pursuant to this section may be defined, among other things, by reference to one or more of the following, namely, the amount of any sum received or balance held or the period for which any such sum or balance is or is likely to be retained or held; and such rules may include provision for enabling a client (without prejudice to any other remedy) to require that any question arising under the rules in relation to the client's money be referred to and determined by the Society.

(3) Except as provided by rules made pursuant to this section, a solicitor shall not be liable by virtue of the relation between solicitor and client to account to any client for interest received by the solicitor on moneys lodged in an account, or on deposit receipt, at a bank, being moneys received or held for or on account of his clients generally.

(4) Nothing in this section or in rules made pursuant to this section shall affect any arrangement in writing, whenever made, between a solicitor and his client as to the application of the client's money or interest thereon.

5.—(1) This Act may be cited as the Solicitors (Scotland) Act 1965 and shall be construed as one with the Solicitors (Scotland) Acts 1933 to 1958, and those Acts and this Act may be cited together as the Solicitors (Scotland) Acts 1933 to 1965.

Citation,
construction,
interpretation,
commence-
ment and
extent.

(2) In this Act—

“the Act of 1949” means the Solicitors (Scotland) Act 1949 c. 63 1949 ;

“the Act of 1958” means the Solicitors (Scotland) Act 1958 c. 28 1958 ;

“the Society” means the Law Society of Scotland.

(3) This Act shall come into operation on 1st January 1966.

(4) This Act shall extend to Scotland only.